

Uttarakhand Medical Council Act, 2002

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[Uttarakhand Medical Council Act, 2002](#)

[\(Uttarakhand Act](#)

[No. 17 of 2002](#)

[\)](#)

[Last Updated 7th March, 2020](#)

[An Act It is hereby enacted in the Fifty-Third year of the Republic of India as follows:-](#)

[Chapter - I Preliminary](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

[This Act may be called the Uttarakhand Medical Council Act, 2002.](#)

(2)

It extends to the whole of the State of Uttarakhand.

(3)

It shall be deemed to have come into force on 30th October, 2002.

2.

Definitions.

- In this Act, unless the context otherwise requires:

(1)

"Appointed Day" means the date on which the provisions of this Act shall come into force.

(2)

"casual vacancy" means a vacancy occurring otherwise than by efflux of time in any office filled by election or nomination;

(3)

"Council" means the Medical Council constituted under this Act;

(4)

"Uttarakhand" means the whole of the State of Uttarakhand;

(5)

"Executive Committee" means the executive committee of the council constituted under section 11 of the Act,

(6)

"Government" means the Government of Uttarakhand;

(7)

"Medical Practitioner" or "Practitioner" means a person who is engaged in the practice of modern scientific system of medicine and all its branches and has qualifications as prescribed in the first, second or third schedules to the Indian Medical Council Act, 1956 (central Act 102 of 1956);

(8)

"Medicine" means the modern scientific system of medicine and includes surgery and obstetrics but does not include veterinary medicine or veterinary surgery or the Homoeopathic, Ayurveda, Siddha or Unani system of medicine and the expression " medical" shall be construed accordingly;

(9)

"Member" means a member of the Council;

(10)

"prescribed" means prescribed by rules made under this Act;

(11)

"president" means the president of the council;

(12)

"Vice President" means the Vice-President of the council;

(13)

"Register" means the register of medical practitioners prepared or deemed to be prepared and maintained under this Act,

(14)

"Registered Practitioners" means a medical practitioner having register able qualifications as prescribed in the Indian Medical Council Act, 1956 (central Act 102 of 1956) whose name is, for the time being, entered in the register, but does not include a person whose name is provisionally entered in the register;

(15)

"Registrar" or "Deputy Registrar" means the registrar or the Deputy Registrar, as the case may be, appointed under section 14 of this Act;

(16)

"Rules" means rules made under section 31 of this Act;

(17)

"Section" means a section of this Act.

Chapter - II Establishment of the Council

3.

Constitution, Functions and Powers of The Council.

- Constitution and incorporation of the council:-

(1)

With effect from such date as the Government may, by notification in the official Gazette notify, there shall be constituted for the purposes of this Act a council to be called "the Uttarakhand Medical Council".

(2)

The council shall be a body corporate, having perpetual succession and a common seal, with power to acquire, hold and dispose of property, whether movable or immovable, and to contract and to do all things necessary for the purposes of this Act, and may by the name aforesaid sue or be sued.

(3)

The council shall consist of the following members namely:

(a)

Six members having register able qualifications as prescribed in the Indian Medical council Act, 1956 (central Act 102 of 1956) to be nominated by the Government.

(b)

One member from each medical college in Uttarakhand which is recognized by the Medical Council of India, elected from teachers of the medical faculty of that college.

(c)

Four members to be elected by registered practitioners from amongst themselves including one member elected by the Uttarakhand Medical Association :

Provided that no registered practitioner shall be entitled to vote or stand as a candidate for election, unless:

(i)

He/ she is a citizen of India;

(ii)

He /she either resides or carries on his profession or is employed in Uttarakhand.

(d)

Deans of the Medical faculty of the universities of Uttarakhand as ex-officio member and;

(e)

Director General of Health Services of the Uttarakhand Government as ex-officio member.

(4)

The president and Vice president of the council shall be elected by the members from amongst themselves.

(5)

The election of the members and of the president and Vice president shall be held at such time, and at such place, and in such manner, as may be prescribed.

(6)

If at any election, the electors fail to elect the requisite number of members, or the president or the Vice president, the Government shall nominate members from amongst persons qualified to be elected as members of the respective category, as it deems fit, to fill in the vacancy or vacancies; and the persons so nominated shall be deemed to have been elected for such time the vacancies are filled in on regular basis under this section.

(7)

Where any dispute arises regarding any election of a member or of the president or Vice president, it shall be referred to the Government, and the decision of the Government shall be final.

(8)

Notwithstanding anything contained in sub-section(3)-

(a)

In respect of the constitution of the council for the first time under this Act, the members thereof shall be nominated by the Government from amongst persons qualified to be elected or nominated as members of the respective category; and

(b)

The member so nominated shall hold office for such period not exceeding three years in the aggregate as the Government may, by notification in the official Gazette, specify.

4.

Term of the Council.

(1)

The Government shall, by notification in the official Gazette, publish the names of the members.

(2)

Save as otherwise provided by this Act, a member shall hold office for a term of five years from the date of publication of the notification under sub-section (1) :

Provided that where a person is elected by members of medical faculty of a medical college, or is an ex-officio member, he shall cease to hold office as a member if he ceases to belong to that faculty or, as the case may be, ceases to hold such office, before the expiry of his term.

(3)

Save as otherwise provided by this Act, the president or the Vice-president shall hold office from the date of his election up to the day on which his term of office as member expires.

(4)

The term of office of an outgoing member shall, notwithstanding anything contained in sub-section (2) be deemed to extend and to expire with the day immediately preceding the day on which the names of the successor members are published under sub-section (1).

(5)

The term of office of an outgoing President or Vice-President shall, notwithstanding anything contained in sub-section (3), be deemed to extend and to expire with the day immediately preceding the day on which the successor President or Vice-President as the case may be, is elected.

(6)

An outgoing member, President or Vice-President, shall be eligible for re-election or re-nomination for one more consecutive term only.

(7)

Leave of absence may be granted by the council to any member for a period not exceeding six months.

5.

Casual Vacancies.

(1)

A Casual vacancy in the office of the President or Vice-President or a member elected under clause (b) of sub-section(3) of section 3 or clause (c) of said sub-section, shall be filled by election:

Provided that any such vacancy in the office of an elected member occurring within six months prior to the date, on which the term of office of all the members expires, shall not be filled.

(2)

A casual vacancy in the office of a member nominated under clause(a) of sub-section (3) of section 3 of sub section (8) of that section shall be reported forthwith by the Registrar to the Government and shall as soon as possible thereafter be filled by the Government by nomination.

(3)

Any person elected under sub-section(1) or nominated under sun-section(2) to fill a casual vacancy shall, notwithstanding anything contained in sub-section (8) of section 3 of section-4 hold office only so long as the person in whose place he may be elected or nominated; as the case may be, would have held office, if the vacancy had not occurred.

6.

Resignation.

(1)

The president or the Vice-President may at any time resign his office by a notice in writing addressed to the council and delivered to the Registrar, the resignation shall take effect from the date on which it is accepted by council or on the expiry of sixty days from the date of the delivery of the notice, whichever is earlier.

(2)

An elected member may, at any time, resign his office by a notice in writing addressed to the president. A nominated member may at any time resign his office by a notice in writing addressed to the Government and delivered to the

Registrar. Every such resignation shall take effect from the date on which it is accepted by the president or, as the case may be, the Government or on the expiry of sixty days from the date of the receipt of the notice, whichever is earlier.

7.

Disqualification and disability.

(1)

A person should be disqualified for being elected or nominated as, and for continuing as, a member-

(a)

if he/she is an undischarged insolvent; or

(b)

if he/she is of unsound mind and stands so declared by a competent court; or

(c)

if his/her name has been removed from the register and has not been re-entered therein; or

(d)

if he/she is a whole time officer or servant of the council; or

(e)

if he/she has been convicted for an offence involving moral turpitude.

(2)

If any member absents himself from three consecutive meetings of the council, without leave of the council granted under sub-section(7) of section 4 or without such reasons as may, in the opinion of the council, be sufficient, the council may declare his seat vacant and take steps to fill the vacancy.

(3)

If any member becomes, or is found to be, subject to any of the disqualifications mentioned in sub-section (1), the council shall submit a report to the Government, and the Government, if satisfied about the disqualifications shall declare his seat vacant.

8.

Meeting of the Council.

(1)

The meeting of the council shall be convened, held and conducted in such manner as may be prescribed.

(2)

The president, when present, shall preside at every meeting of the council, if at any meeting the President is absent, the Vice-President, and in the absence of both, some other member elected by the members present from amongst themselves, shall preside at such meeting.

(3)

All issues at a meeting of the council shall be decided by a majority of members present and voting.

(4)

The presiding authority at a meeting shall have and exercise a second or casting vote, in case of an equality of votes.

(5)

Six members (including the President and Vice-President) shall form a Quorum. If not present, the presiding authority shall, after waiting for not less than thirty minutes for such quorum, adjourn the meeting to such hour or some future day as it may notify on the notice board at the office of the council; and the business which would have been brought before the original meeting had there been a quorum thereat, shall be brought before the adjourned meeting, and may be disposed of at such meeting or any subsequent adjournment thereof, whether there be a quorum present, or not.

9.

Proceedings of meeting and validity of proceedings.

(1)

The proceedings of every meeting of the council, shall be treated as confidential and no person shall, without the previous resolution of the council, disclose any portion thereof; provided that nothing in this section shall be deemed to prohibit any person from disclosing or publishing the text of any resolution adopted by the council, unless the council directs such resolution also to be treated as confidential.

(2)

No disqualification or defect in the election or nomination of any person as a member, or as the President or as the

Vice-President, or as a presiding authority of a meeting shall by itself be deemed to vitiate any act or proceedings of the council in which such person has taken part, if majority of the persons who are parties to such act or proceedings, were entitled to vote.

(3)

During any vacancy in the council, the continuing members may act, as if no vacancy has occurred.

(4)

Any act done by the council shall not be questioned on the ground merely of the existence of any vacancy in, or any defect in the constitution of the council.

10.

Powers, duties and functions of the council.

- Subject to such conditions as may be prescribed by or under the provisions of this Act, the powers, duties and functions of the council shall be:-

(a)

to maintain the live register, and to provide for the registration of medical practitioners;

(b)

to hear and decide appeals against any decision of the Registrar;

(c)

to prescribe a code of ethics for regulating the professional conduct of practitioners;

(d)

to reprimand a practitioner, or to suspend or remove his name from the registered, or to take such other disciplinary action against him as may, in the opinion of the council be necessary or expedient.

(e)

To exercise such other powers, perform such other duties and discharge such other functions, as are laid down in this Act, or as may be prescribed.

(f)

To receive complaints from public (including patients and their relatives) against misconduct or negligence by a medical practitioner, to proceed for inquest, take a decision on the merits of the case and to initiate disciplinary action or award compensation and similarly to take action against frivolous complaints.

(g)

To provide protection to its members in discharging professional duties;

(h)

To ensure that no unqualified person practices the modern scientific system of medicine.

11.

Executive Committee.

(1)

The council as soon as may be, shall constitute an executive committee consisting of the President, an ex-officio member and such other number of other members, elected by the council from amongst its members, as may be prescribed.

(2)

The term of office of and the manner of filling casual vacancies among, and the procedure to be followed by, the members of the executive committee shall be such as may be prescribed.

(3)

In addition to the powers, duties and functions conferred, imposed and entrusted by this Act, the executive committee shall exercise such powers, perform such duties, and discharge such functions of the council as may be delegated to it by rules or entrusted to it from time to time, by the council.

(4)

The president shall be the ex-officio Chairman of the Executive Committee.

12.

Fee and allowances to members of the council and the Executive committee.

- There shall be such fees, allowance and travelling allowances paid to the President, the Vice President and other members of the council, and to the members of its Executive Committee, for attendance at meetings, as shall from time

to time be prescribed.

13.

Income and expenditure of the council.

(1)

The income of the Council shall consist of:-

(a)

Registration fees received from the practitioners;

(b)

Grants received from the Government, if any and

(c)

Any other sums raised by the Council.

(2)

It shall be competent for the Council to incur expenditure for the following purposes; namely:-

(a)

Salaries and allowances of the Registrar and the staff maintained by the Council;

(b)

Fees and allowances paid to the member of the council and of the Executive Committee;

(c)

Remuneration paid to the assessors; and

(d)

Such other expenses as are necessary for performing the duties and discharging the functions under this Act.

14.

Appointment of Registrar and or Deputy Registrar of the council, their duties and functions.

(1)

The Council shall, with the previous sanction of the Government, appoint a Registrar and or a Deputy Registrar, he shall be a qualified medical graduate as prescribed in Scheduled I, II and III of the Indian Medical Council Act 1956 (central Act 102 of 1956).

(2)

The executive committee may, from time to time, grant leave to the Registrar:

Provided that, if the period of leave does not exceed one month, the leave may be granted by the president.

(3)

During any temporary vacancy in the office of the Registrar due to leave or any other reason, the Deputy Registrar shall act as the Registrar. In case of non availability of Registrar and Deputy Registrar, the executive committee may, with the previous sanction of the Government, appoint another person to act in his place and any person so appointed shall for the period of such appointment, be deemed to be the Registrar for the purpose of this Act :

Provided that, when the period of such vacancy does not exceed one month, the appointment may be made by the President, who shall forthwith report such appointment to the executive committee and to the Government.

(4)

The Council may, with the previous sanction of the Government, suspend, dismiss or remove any person appointed as the Registrar or impose any other penalty upon him in the manner as may be prescribed.

(5)

Save as otherwise provided by this Act, the salary and allowances and other conditions of service of the Registrar shall be such as may be prescribed.

(6)

The Registrar shall be the Secretary and the Executive officer of the Council. He shall attend all meetings of the Council and of its Executive Committee and shall keep minutes of the meetings and names of members present and of the proceedings of such meetings.

(7)

The accounts of the Council shall be kept by the Registrar, in the prescribed manner.

(8)

The Registrar shall have such supervisory powers over the staff as may be prescribed, and may perform such other

duties and discharge such other functions as may be specified in this Act, or as may be prescribed.

(9)

The Registrar shall be deemed to be a public servant within the meaning of section 21 of the I.P.C.

Chapter - III Preparation and Maintenance of Register

15.

Preparation of Register.

(1)

As soon as may be after the appointed day, the Registrar shall prepare and maintain thereafter a register of Medical practitioners for Uttarakhand in accordance with the provisions of this Act.

(2)

The register shall be in such form, and may be divided into such parts, as may be prescribed.

(a)

the register shall include- the full name, address, and qualifications with the name of the college and university of the registered practitioner, the date on which each qualification was obtained, and such other particulars as may be prescribed.

(3)

Any person who possesses any of the qualifications in the First, Second or Third Schedule to the Indian Medical Council Act, 1956 (central Act 102 of 1956) shall be subject to any condition laid down by or under the Indian Medical Council Act 1956, at any time on an application made in the prescribed form to the Registrar and on payment of a prescribed fee and on presentation of proof of his registerable qualification, be entitled to have his name entered in the register.

(4)

(a)

every person, whose name was entered on a date prior to 1st May, 1961 in Indian Medical Council Register and continued in such register on the day immediately preceding the appointment day, shall be entitled to have his name continued in the register prepared under this Act;

(b)

Within a period of three months from the appointed day or such further period as the Government may allow, the Registrar shall publish a general notice in the official Gazette and in such newspapers, as the council may select, in such form as may be prescribed, calling upon every person to whom clause(a) applies, to pay to the Registrar in the prescribed manner the prescribed fee if he desire to have his name on the register under this Act, and shall also send individual notice for a like purpose by registered post to every such person at his last known address in such form as may be prescribed. The name of every such person who pays such fee before the expiry of the period of two months from the date of publication of the general notice in the official Gazette shall be enlisted on the register.

(5)

After the last date for payment of the prescribed fee under clause (b) of sub-section (4) has expired and the register prepared in accordance with foregoing provisions is ready, the Registrar, shall publish a notice in the official Gazette and such newspapers as the council may select, about the register having been prepared, and the register shall come into force from the date of the publication of such notice in the official Gazette.

(6)

Any person servicing or practicing modern scientific system of medicine in Uttarakhand shall be registered with the council under this Act, without registration with the council any person though qualified in medicine, shall be liable for action as specified by the council.

(7)

Every registered practitioner shall be given a certificate of registration in the prescribed form. The registered practitioner shall display the certificate of registration in a conspicuous part in the place of his practice and if he has more than one such place in any of them.

16.

For registration in certain cases.

(1)

A practitioner holding a medical qualification from any authority in any place outside the territory of India (other than the qualification in the second schedule or the Third schedule to the Indian Medical Council Act 1956) shall not be registered

under this Bill, unless the procedure specified in sub-section (2) has been followed.

(2)

Any person, who holds any such medical qualification, may apply to the council for registration by giving a correct description of his qualification, with his degree, diploma, license or certificate. The council shall send the same to the Medical Council of India for opinion and shall act according to the opinion.

17.

Persons who may not be registered.

- Notwithstanding anything contained in section 15 and 16, no person whose name has been removed whether before or after the appointed day, from any register kept under this Bill or any other law for the time being in force in India regulating the registration of Medical practitioners on the ground of professional misconduct shall be entitled to have his/her name entered in the register, unless his/her name is duly ordered to be restored to the register from which it was so removed.

18.

Fees for and Certificate of provisional registration.

(1)

Any person who desires to be registered provisionally under section 25 of the Indian Medical Council Act, 1956 (central act 102 of 1956) shall make an application in the prescribed form to the Registrar and shall pay the prescribed fee.

(2)

Every person whose name is entered in the registrar under sub-section (1) shall be given a certificate of provisional registration in the prescribed form. Such certificate shall remain in force for such period as may be specified therein.

19.

Maintenance of Register.

(1)

It shall be the duty of the Registrar to make entries in the register, from time to time, to revise the same and to issue certificate of registration in accordance with the provisions of this Act, and the rules made there under.

(2)

(a)

every Registrar of births and deaths, on receiving notice of death of a medical practitioner, under this Act, shall forthwith transmit by post to the registrar appointed under this Act a certificate under his own hand of such death with the particulars of time and place of death and may charge the cost of such certificate and transmission as an expense on his office;

(b)

the names of registered practitioners, who die or whose names are directed to be removed from the register under section 22 shall be removed there from.

(3)

Any person whose name is entered in the register and who subsequent to his registration desires to record in the register any change in his name shall, on an application made in this behalf and on payment of prescribed fee be entitled to have such change in his name recorded in the register.

(4)

Subject to the provisions of section 26 of the Indian Medical Council Act 1956 (Central Act, 102 of 1956), any person whose name is entered in the register and who subsequent to his registration obtains any additional qualification specified in any of the schedules to the Indian Medical Council Act, 1956, shall on an application made on this behalf and on payment of the prescribed fee be entitled to have an entry stating such additional qualification made against his name in the register.

20.

Publication of List of Registered practitioners.

(1)

At such time after the publication of the notice under sub-section (5) of section 15 as the council deems fit and thereafter every five years, the Registrar shall cause to be printed and published a correct list of all persons for the time being entered in the register but not later than three months of the start of the election processes.

(2)

The Registrar shall ensure that this list be printed and published annually on or before a date to be decided by the Executive Committee or an addendum and a corrigendum (if required) to the list published under sub-section (1) showing:-

(a)

the names of all persons for the time being entered or re-entered in the register, and not included in any subsisting list already printed and published;

(b)

the names of all practitioners included in any subsisting list whose names have been since been removed on account of any reason what-so-ever from, and not reentered in the register; and

(c)

any other amendments to the subsisting list.

(3)

The form of the list published under sub-section (1), the particulars to be included therein, and the manner of its publication, shall be such as may be prescribed.

(4)

A copy of the list referred to in sub-section (1), shall be conclusive evidence in all courts, and in all judicial or quasi-judicial proceedings, that the persons therein specified are registered according to the provisions of this Act and the absence of the name of any person from such copy shall be evidence, until the contrary is proved, that such person is not registered according to the provisions of this Act :

Provided that in the case of any person whose name does not appear in such copy, a certified copy under the hand of the Registrar of the entry of the name of such person on the register shall be evidence that such person is registered under the provision of this Act.

21.

Disciplinary action including removal of names from the Register.

(1)

The council shall have a disciplinary committee comprising of:

(i)

A Chairman to be nominated by the council;

(ii)

A member of legislative Assembly of Uttarakhand State nominated by the speaker;

(iii)

A legal expert to be nominated by the Law Department;

(iv)

An eminent public man nominated by the Government;

(v)

An eminent medical specialist in the relevant specialist to which the complaint pertains, to be nominated by the council ; and

(vi)

A member nominated by Medical Association of Uttarakhand State with minimum ten years standing.

(2)

If a registered practitioner has been, after due inquiry held by the council or by the executive committee in the prescribed manner, found guilty of any misconduct by the council or the executive committee, the council may:-

(a)

Issue a letter of warning to such practitioner; or

(b)

Direct the name of such practitioner-

(i)

to be removed from the register for such period as may be specified in the aforesaid direction; or

(ii)

to be removed from the register permanently.

Explanation. - for the purpose of this section a registered practitioner shall be deemed to be guilty of misconduct if:-

(a)

he/she is convicted by a criminal court for an offence which involves moral turpitude and which is cognizable within the meaning of the code of criminal procedure 1973 (central act 2 of 1974), or

(b)

in the opinion of the council his/her conduct is infamous in relation to the medical profession particularly under any code of Ethics, prescribed by the council or by the Medical Council of India constituted under the Indian Medical Council Act, 1956 (central act 102 of 1956) in this behalf.

(3)

The council may, on sufficient cause being shown, direct on any subsequent date that the name of a practitioner removed under the sub-section (1) shall be re-entered in the register on such conditions, and on payment of the prescribed fee, as the council may deem fit.

(4)

The Council may, of its own motion, or on the application of any person, after due and proper inquiry and after giving an opportunity to the person concerned of being heard, cancel or alter any entry in the register, if in the opinion of the council, such entry was fraudulently or incorrectly made.

(5)

In holding any inquiry under this section, the council or the executive committee, as the case may be, shall have the same powers as are vested in civil courts under the code of civil procedure, 1908 when trying a suit, in respect of the following matters, namely:-

(a)

Enforcing the attendance of any person, and examining him on oath;

(b)

Compelling the production of documents;

(c)

Issuing of commissions for the examination of witnesses.

(6)

All the inquiries under this section shall be deemed to be judicial proceedings within the meaning of sections 193, 219 and 228 of the Indian Penal Code.

(7)

(a)

for the purpose of advising the Council or the Executive Committee, as the case may be, on any question of law arising in any inquiry under this section, there may in all such inquired an assessor, who has been for not less than ten years;

(i)

an advocate enrolled under the advocated Act 1961, or

(ii)

advocate General of the Honor able High Court;

(iii)

an attorney of a High Court.

Explanation. - (a) for the purpose of this sub-section for computing the required period that period will also be added during which a person has been enrolled as an advocate under the Indian Bar council Act, 1926.

(b)

where an assessor advises the Council, or the executive committee, as the case may be, on any question of law as to evidence, procedure or any other matter, he shall do so in the presence of every party or person representing a party to the inquiry who appears thereat or if the advices tendered after the Council or the Executive committee has begin to deliberate as to its findings, every such party or person as a foresaid shall be informed what advice the assessors has tendered, such party or person shall also be informed if, in any case, the council or the executive committee does not accept the advice of the assessors on any such questions as a foresaid.

(c)

any assessors under this section may be appointed either generally, or to any particular inquiry, and shall be paid the prescribed remuneration as may be prescribed from time to time.

22.

Renewal of registration.

(1)

Notwithstanding anything contained in section 15 and 20, on such date, after the date of publication of the notice under sub-section 5 of section 15, as the Executive Committee may, with the previous sanction of the Government, decide, and every five years thereafter, the Registrar shall cause two notices in the prescribed form to be published, at an interval of not less than thirty days in the official gazette calling upon in the manner provided in sub-section (2) on registered practitioner to make an application to the registrar for the continuance of their names of the register.

(2)

The registrar shall, after the publication of the first notice under sub-section (1), send a notice by registered post enclosing therewith the prescribed form of application to the registered practitioners at their addresses as entered in the register, calling upon them to return the application to the registrar for continuance of their names of the register within forty-five days of the date of the notice. If any of the registered practitioners fails to return such applications within the time specified, the registrar shall issue a further notice to such registered practitioner by registered post after the application of second notice under sub-section (1), enclosing therewith the prescribed form the application to the registrar for the continuation of his name on the register within thirty days of the date of the further notice with a fee as may be prescribed from time to time.

(3)

If the application is not made on or before the date fixed by further notice sent by registered post under sub-section (2) the Registrar shall remove the name of the defaulter from the registrar and shall inform him of such removal by registered post :

Provided that if an application for continuance of the name so removed is made within a period of six months from the date fix by the said further notice by registered post under sub-section (2), the name so removed may be re-entered in the register on payment of the prescribed fee.

23.

Appeals.

(1)

Any person aggrieved by any decision of the Registrar under this Act may, within the period of 1 month from the date on which the decision is communicated to him, appeal to the Council which shall hear and determine the appeal in the prescribed manner.

(2)

Save as otherwise provided in the Indian Medical Conceal Act, 1956 (Central Act 102 of 1956), the decision of the Council under this Act shall be final.

24.

Rights of registered practitioners.

- Notwithstanding anything contained in any law for the time being in force-

(i)

The expressions 'legally qualified' medical practitioner ' or duly qualified medical practitioner' or any word importing a person recognized by law as a medical practitioner or member of the medical profession shall in all acts of the Legislative Assembly of Uttarakhand and all the central Acts (in their application to Uttarakhand) in so far as such Acts relate to any matter with respect to which the legislative Assembly has power to make laws, under clause (3) of article 239 AA of the constitution, include a practitioner whose name is entered in the register under this Act:

(ii)

Every registered practitioner shall be exempt, if he so desires from serving on an inquest.

25.

General provision applicable to Medical practitioner.

- The provisions of this Act are in addition to, and not in derogation of the provision of the Indian Medical Council Act, 1956, (Central Act 102 of 1956) containing general provisions applicable to all medical practitioners.

26.

Penalty for falsely claiming to be registered.

- If any person whose name is not for the time being entered in the register falsely represents that it is so entered, or uses in connection with his name or titled any word or letters reasonably calculated to suggest that his name is so

entered, he shall, on conviction, be punished with minimum fine of Rs. 25,000 which may extended upto Rs. 50,000.

27.

False assumption of medical practitioner or practitioner under this Act to be an offence.

- Any person who falsely assumes that he is a medical practitioner or practitioner as defined in clause (7) of section, 2 and practices the modern scientific system of medicine shall be punishable with rigorous imprisonment which may extend upto three years or with fine which may extend upto Rs. 50,000 (fifty thousand rupees) or with both.

Explanation. - under this section punishment can be awarded only to Medical practitioner as defined in section 2(7) of this Act and no punishment may be awarded to any one practicing veterinary medicine or veterinary surgery or homeopathic or ayurvedic or siddha or the Unani System of medicine those holding BAMS or BIMS degree.

28.

Court competent to try offence, under this Act and take cognizance of offence.

(1)

No court other than the court of a Chief Judicial Magistrate, or Magistrate First Class shall take cognizance of, or try an offence, under this Act.

(2)

No court shall take cognizance of any offence under this Act except on a complaint in writing by an officer empowered by rules made in this behalf.

29.

Control of the Government.

(1)

If at any time, it appears to the Government that, the council or its president or vice-president has failed to exercise or has exceeded or abused any of the powers conferred upon it or him by or under this Act or has ceased to function, or has become incapable of functioning, the Government may, if it considers such failure, excess abuse or incapacity to be a serious character, notify the particulars thereof to the council or the President or the Vice-President, as the case may be. If the council or the President or the vice- President as the case may be, fails to remedy such failure, excess abuse or incapability within such reasonable time as the Government may fix in this behalf, the Government may remove the President or Vice President or dissolve the council for specified period, as the case may be, and in case of dissolution of the council, cause all or any of the powers, duties & function of the Council to be exercised, performed and discharged by such registered practitioner or practitioner as the Government may appoint in that behalf :

Provided that a new council shall be constituted before the expiry of a period of two years from the date of its dissolution.

(2)

Notwithstanding anything contained in this Act, or in the rules made there under, if at any time it appears to the Government that the council or any other authority empowered to exercise any of the powers or to perform any of the duties or functions under this Act, has not been validly constituted or appointed, the Government may cause any of such powers duties or functions to be exercised or performed by such person or persons, in such manner and for such period; not exceeding six months and subject to such conditions, as it thinks fit.

30.

Rules.

(1)

The Government may, by notification in the official Gazette, and subject to the condition of previous publication, make rules to carry out the purposed of this Act. Such rules may be made to provide for all or any matters expressly required or allowed by this Act to be prescribed by rules.

(2)

In particular and without prejudice to the generality of the foregoing power, the Government may make rules for all or any of the following matters, namely;

(a)

the time and place at which and the manner in which the election of the members and of the president and the Vice President shall be held under sub-section (5) of section 3.

(b)

the manner in which the meeting of the council shall be convened, held and conducted under sub-section (1) of section

8;

(c)

the powers, duties, and functions of the council, the condition subject to which they shall be exercised and performed, and regulation of professional conduct of practitioners by a code of ethics in accordance with section 10;

(d)

number of elected members who shall be elected by the Council from amongst its members for constituting the Executive Committee of the Council; and the term of office of, and the manner of filling casual vacancies among and the procedure to be followed by the members of the Executive Committee and also the powers and duties and functions of the Council as may be delegated by the Council to be exercised, performed and discharged by the Executive committee under the provision of section 11;

(e)

the fees and allowances payable to the President, the Vice President and other member of the Council, and to the members of its Executive Committee under section 12;

(f)

the salary and allowances payable to the Registrar and other conditions of service of the Registrar, manner of maintenance of the accounts of the council by the Registrar, supervisory powers of the Registrar over the staff and the duties and functions as may be specified in the Bill, which may be performed and discharged by the Registrar;

(g)

the conditions of service of the officers and staff of the Council under sub section (3) of section 15;

(h)

preparation and maintenance of the register of medical practitioners, the form of such register, the particulars including the name, address, and qualification, etc of the registered practitioners to be entered in the register, prescription of the form of application and of notice to be published in the official Gazette and newspapers to have names registered, prescription of fees to be paid for such entry and the manner of payment, prescription of form for sending individual notices, prescription of the form of certificate which shall be given to registered practitioners under section 15;

(i)

prescribing the form of application for provisional registration, fee payable for such registration and prescribing form of certificate of provisional registration under section 18;

(j)

prescription of fee for recording change of name in the register, prescription of the fee payable for entering additional qualification in the register and prescription of fee payable for issue of duplicate certificate of registration under section 19;

(k)

the form of the list of registered medical practitioners and manner of the publication of the list under section 20;

(l)

manner for taking disciplinary action etc. against registered practitioner by the Council or by the Executive Committee, conditions subject to which and the fee for re-entering the name of a practitioner in the register and the remuneration to be paid to an assessor under section 21;

(m)

from of notice and form of application for renewal of registration be registered medical practitioner, fee payable for re-entry of name which is removed from the register due to non-renewal under section 22;

(n)

the manner in which appeals against the decision of the Registrar shall be heard by the Council under section 23;

(o)

officers who are empowered to make a complaint under sub-section (2) of section 29;

(p)

any other matter which is to be, or may be, prescribed under this Bill.

(3)

All rules made under this section shall be laid is not more than thirty days on as soon as possible after they are made before the Legislative Assembly of Uttarakhand and shall be subject to rescission by the Legislative assembly or to such modifications as the Legislative Assembly may make during the session in which they are so laid or the session

immediately following.

(4)

Any rescission or modification so made by the Legislative Assembly of Uttarakhand shall be published in the official Gazette and shall thereupon take effect.

31.

Code of conduct and Ethics.

- The Council shall follow the code of conduct and medical ethics as prescribed by the Medical Council of India from time to time.

32.

Power to remove difficulties.

- If any difficulty arises in giving effect to the provisions of this Act, the Government may by order as occasion requires, do anything which appears to it to be necessary for the purpose of removing the difficulty:

Provided that no such order shall be made after the expiration of two years from the constitution of the Council.

33.

Repeal.

- The Uttarakhand Medical Council Ordinance, 2002 is hereby repealed.

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